

Fisheries New Zealand

By email: FMsubmissions@mpi.govt.nz

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Review of measures for shore-based shellfish harvesting in the Auckland Coromandel Area

SUBMITTER DETAILS

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Introduction

1. This is a submission on the review of measures for shore-based shellfish harvesting in the Auckland Coromandel Area as set out in the Fisheries New Zealand (FNZ) Discussion Paper No: 2026/03 (**Discussion Paper**).¹
2. The Environmental Defence Society (**EDS**) is an independent not-for-profit organisation conducting interdisciplinary policy research and litigation. It was established in 1971 with the purpose of improving environmental outcomes in Aotearoa New Zealand.
3. EDS has a special interest in the marine environment and recently completed a multiyear project looking at issues within the national oceans management system and options for future reform. In September 2025, EDS released *Pathways to Oceans Reform: EDS Oceans Reform Final Report*.²
4. Fisheries management has been a core focus of EDS's work for many years. In 2018, EDS led an in-depth review of the national fisheries management system and published findings in a report entitled *Voices from the Sea: Managing New Zealand's Fisheries*.³ EDS is currently undertaking work to review the quota management system which has been in place now for 40 years. This submission draws on this work in continuing to seek improvements to fisheries decision-making for wild stocks.

¹ Fisheries New Zealand, 2026, *Review of measure for shore-based shellfish harvesting in the Auckland Coromandel 2026*, Discussion Paper 2026/03, [**Discussion Paper**], available [here](#)

² Peart R, 2025, *Pathways to oceans reform: EDS oceans reform final report*, Environmental Defence Society, Auckland, available [here](#)

³ Peart R, 2018, *Voices from the sea: Managing New Zealand's fisheries*, Environmental Defence Society, Auckland, available [here](#)

Summary of submission

5. EDS supports Option 4 with the following changes:
 - a) Removal of all species except kina and pacific or rock oysters from the exemption list, as a precaution, with additional species able to be added to the list once information is available demonstrating no sustainability issues.
 - b) Extension of the closure zone to all inshore areas in the Auckland Coromandel Area, including around all islands.
6. Due to heavy depletion, the importance of remnant subtidal stocks and uncertainty around recovery prospects, recreational harvest of green-lipped mussels should be closed throughout the entire Auckland Coromandel Area (and not just in the proposed closure zone).

Need for action

7. EDS welcomes the initiative by FNZ to review the measures that apply to shore-based shellfish harvesting.
8. As set out in the Discussion Paper, information on the state of shellfish species in the Auckland Coromandel Area is patchy and variable, and overall indicates sustainability concerns. As set out in the Discussion Paper:⁴
 - a) Few large cockles have been found across surveyed cockle populations (although there are some areas of strong recruitment and abundance)
 - b) Large pipi are scarce or absent in northern sites outside of the Auckland Coromandel Area (although densities are generally high)
 - c) Large declines in the cover of green-lipped mussels have been observed in the low tidal zone at Piha and Te Henga
 - d) There are recorded declines in periwinkle between 2011 and 2013
 - e) Densities of black nerite snails halved between 2021 and 2023
 - f) Densities of black topshell and snakeskin chiton declined significantly in 2023
 - g) Cats eyes declined to a historic low in 2023
 - h) Limpets declined to near zero in 2023
 - i) Region-wide declines in the abundance of multiple gastropod and seaweed species have also been documented on shallow subtidal reefs
 - j) Many anecdotal accounts highlight shellfish depletion.⁵
9. In addition, scallop beds are currently closed and there is a ban on harvesting rock lobster in the inner Hauraki Gulf due to stock collapse.

⁴ Discussion Paper, pages 12-13

⁵ Discussion Paper, page 14

10. The multiple section 186A temporary closures requested by iwi in the Auckland Coromandel Area, including at Ōmaha Bay and Kawau Bay, Whangaparōa Peninsula, Umupuia Beach, Waiheke Island, and Te Mātā and Waipatukahu, are also indicative of a wider problem with inshore stocks and the need for broader measures. Each temporary closure requires a separate application to be considered, and a closure only lasts for two years (an insufficient time to enable stocks to rebuild) necessitating repeated applications to keep the closures in place.
11. All the above indicates deficiencies in the current management approach to shellfish harvesting and the need to apply more precautionary rules at a broader scale.
12. Such a change in approach is long overdue. We note the collaboratively developed Sea Change Tai Timu Tai Pari Marine Spatial Plan, released in 2016 (a decade ago), set out the following actions under the objective of rebuilding fish stocks:⁶
 3. *Put in place an effective management regime to address recreational harvest pressure on the inter-tidal zone by 2021.*
 9. *Rebuild intertidal species by:*
 - a) *Listing species that can be recreationally harvested (e.g. pipi, cockles etc) by 2017 and considering seasonal closures for those species.*
 - b) *Placing an immediate moratorium on recreational (non-cultural) harvest for indigenous species not on the list until a new management regime is put in place.*
13. These provisions would effectively reverse the legal position, from shellfish species being able to be harvested unless specifically restricted, to shellfish only being able to be harvested if specifically allowed. Given the diversity of shellfish species that are now harvested from near-shore habitats, and the difficulty of managing them on a species-by-species basis, EDS considers such a reversal to be necessary to achieve sustainable utilisation.

Options

14. The Discussion Document sets out four options as set out below:

Option 1: Full intertidal closure

This would prohibit recreational take of shellfish and other invertebrates from a defined intertidal closure area (around 200m offshore from mean high-water mark). The existing combined daily limit of 50 shellfish would apply outside the closure area.

Option 2: Partial intertidal closure with exceptions

The closure would apply as in Option 1 but with some species specifically exempted and with bag limits. This is broadly the approach proposed in the Sea Change Plan. However, the list of exempted species is large and includes:

⁶ Sea Change Tai Timu Tai Pari Marine Spatial Plan, page 67, available [here](#)

- Bivalves: Cockles (50), pipi (50), pacific or rock (100), dredge oysters (50), scallops (20) and tuatua (50)
- Crabs (10)
- Kina (150 east coast and 50 west coast)
- Octopus (1)
- Blackfoot pāua (10) and yellowfoot pāua (10)
- Sea cucumbers (5)
- Shrimps (20)
- Spiny (3) and packhorse rock lobsters (3)
- Squid (5).

Option 3: Option 1 plus a combined recreational daily limit of ten shellfish for those outside the closure area without a species bag limit.

Option 4: Option 2 plus a combined recreational daily limit of ten shellfish for those without a species bag limit.

Submission on options

Closure as a starting position

15. EDS supports the approach taken in all the options that there is a ban on shellfish harvesting within the closure area unless a species is specifically exempted from it. Given the wide variety of species harvested in the intertidal zone, the majority which are not monitored and have no minimum harvest size, this is the only practical approach to ensure sustainability.

Species exempted from the closure

16. The list of species proposed to be exempted from the closure in Options 2 and 4 is too broad. With the exception of kina, and Pacific and rock oysters, very little is known about state of these stocks, and where information is available it indicates depletion as follows:
 - a) *Scallops*: As noted above, all the scallop beds in the Auckland Coromandel Area are currently closed due to stock collapse. The recreational harvesting rules should reflect this. If and when any scallop beds are reopened in the future, this could be revisited and scallops included in the exemptions list with appropriate management rules in place. It is not clear at this point that a bag limit of 20 scallops, which applied prior to the closure, would necessarily be appropriate on any reopening.
 - b) *Spiny and packhorse rock lobsters*: Similarly, harvest of spiny red rock lobsters is prohibited in the inner Hauraki Gulf due to stock collapse and the proliferation of kina barrens. In addition, the harvest of spiny and packhorse lobsters is currently prohibited around Waiheke Island under a temporary closure. Given the paucity of rock lobsters in inshore areas, and the seriousness of kina barrens, rock lobsters should not be harvested in the near-shore zone.

- c) *Pāua*: Harvesting of pāua is currently closed around Waiheke Island and in the north Auckland temporary closure area. Pāua are considered functionally extinct around Waiheke Island.⁷ There is little information available about the state of pāua elsewhere in the Auckland Coromandel Area, highlighted by the lack of reference to any data in the Discussion Paper, and no information specific to the area included in the Fisheries Assessment Plenary which states that no surveys or assessment has been undertaken of PAU 1 (which includes the whole top of the North Island).⁸ In addition, given pāua have “very high” vulnerability to climate change effects⁹ and overharvesting, it seems extremely unlikely there are healthy stocks in the Auckland Coromandel Area.
- d) *Cockles and pipi*: The most recent intertidal monitoring of cockles and pipi in the northern North Island region (2025) found “none of the populations included a notable number of large cockles” and large pipi were “scarce or absent across all of the sites”.¹⁰ This is indicative of populations under stress. Harvesting should be closed until the beds recover a full healthy size range.
- e) *Sea cucumbers*: There is little or no information available about the state of sea cucumber stocks in the Auckland Coromandel Area, highlighted by the lack of reference to any data in the Discussion Paper, and no estimates of biomass or stock status available in the Fisheries Assessment Plenary.¹¹ Given this lacuna of information, the precautionary approach would be to stop harvest until more information is available.

17. A precautionary approach should be taken by only initially exempting kina and pacific and rock oysters from the closure, with other species able to be added to the list once there is information available to demonstrate that harvesting would be sustainable.

Species not exempted from closure

18. EDS supports mussels not being included in the exemption list. Mussel reefs used to be extensive around the Hauraki Gulf and only small remnants remain. The Mussel Reef Restoration Trust has spent more than a decade attempting to restore mussel beds in the Gulf but with little success.¹² This highlights the importance of protecting remnant wild beds (many of which are subtidal), because if these are lost entirely, there appears little prospect of recovery.

⁷ Harawira W, 2025, “They’re little divas”: Inside the fight to save the pāua’, *Stuff*, 5 August, available [here](#)

⁸ Fisheries Assessment Plenary, May 2025, page 1112

⁹ Fisheries Assessment Plenary, May 2025, page 1111

¹⁰ Fisheries New Zealand, 2025, *Intertidal shellfish monitoring in the northern North Island region, 2024-25*, Fisheries Assessment Report 2025/27, pages 1-2

¹¹ Fisheries Assessment Plenary, May 2025, page 1510

¹² Peart R, D Koolen-Bourke and S Sidibe, 2024, *Restoring the sea: The role of marine spatial planning*, Environmental Defence Society Auckland, at pages 43-49, available [here](#)

19. A case in point is Ōrere Point which used to be renowned for its abundant and juicy green-lipped mussels. As recorded in Chisholm's 2005 book:

"In 1967 the mussels at Orere Point were readily accessible to anyone. You could wade out at low tide and get what you wanted. As hordes of people descended on the area, this didn't last long ... The main bed was the reef around the beacon at Orere Point. Apart from their large size, Orere mussels were distinctive. Sponges mostly red and yellow grew on their shells."¹³

20. Few harvestable-sized mussels now remain at Ōrere Point with only patchy remnant (mainly subtidal) beds in the area. These are self-recruiting, so there is the potential to restore them if action is taken before these are also lost.
21. EDS therefore submits that recreational harvest of green-lipped mussels should be closed, and that this should apply throughout the entire Auckland Coromandel Area (and not just in the 200m zone) to take into account the fact that many remnant beds are subtidal. If and when the beds recover to a healthy state managed harvest could be provided for.

Reduced bag limit for harvest outside the closure

22. EDS supports the proposals in Options 3 and 4 to reduce the combined recreational daily limit of shellfish without a species bag limit, harvested outside the closure area from 50 to 10.

Closure zone

23. The proposed closure zone is described in the Discussion Paper as being "approximately" 200m offshore of the mean high-water mark, but with extensions in some places "slightly further offshore" to include "coastal islands that may be accessible on foot from the mainland during low tidal stages" and to "accommodate the unique geomorphology of bays, harbours and rivers". Indicative boundaries of the intertidal closure are provided in Figure 3 (shown below) but the scale is so large that it is not possible to discern differences in the boundary due to the characteristics of different areas so EDS is unable to comment on these
24. Somewhat strangely, Figure 3 shows the intertidal closure area around Waiheke Island but not other islands in the Gulf where the public can access land by ferry (eg Kawau Island, Tiriti Matangi, Rangitoto, Motutapu, Rākino and Rotoroa Islands) and which have numerous visitors.

¹³ Chisholm D, 2005, *The mussel poachers of Orere Point and other poaching stories*, Hazard Press, Christchurch, page 17

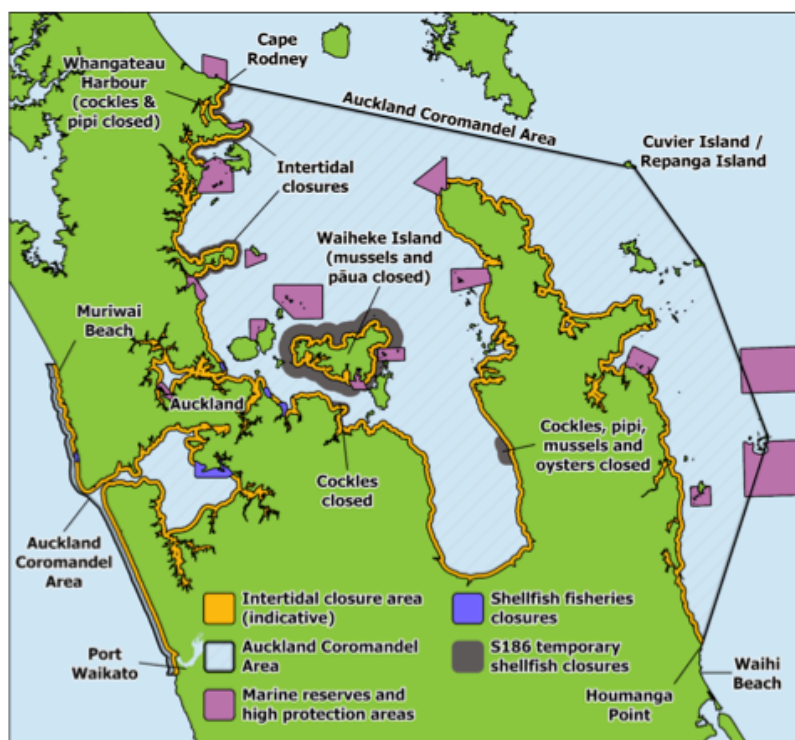


Figure 3. Proposed intertidal closure area showing existing area closures within the Auckland Coromandel area. The indicative intertidal closure area is shaded yellow and extends seaward from the high-water mark to approximately 200 m offshore along the mainland and Waiheke Island coastline.

25. Other island areas around the Gulf are readily accessed by private boat. Given there are an estimated 3.6 million recreational boats in New Zealand¹⁴ it would be reasonable to assume that there are well over a million, and possibly close to two million, in the Auckland Coromandel Area. Shellfish harvesting from boat-borne members of the public is therefore a significant pressure that these new rules need to address.
26. EDS submits the provisions should apply equally to all nearshore areas in the Auckland Coromandel Area, ie out to 200m offshore of all dry land.

Communication of the closure

27. To be effective, the closure will need to be supported by a strong public education and compliance programme, including clear signage in multiple languages, accessible information, and targeted outreach at popular harvesting locations.

Conclusion

28. EDS welcomes the initiative by FNZ to review the management measures for shore-based shellfish harvesting. It has been a long-time coming and should provide a much needed respite for the many overharvested inshore areas around the Hauraki Gulf.

¹⁴ Maritime New Zealand, 2024, *Maritime New Zealand recreational boating monitor, 2023-24 financial year*, page 10, available [here](#)